



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2023-29530 / PODS Case No. C-031401 regarding Police Officer Ermir Aliaj

Date: November 4, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Aliaj spoke discourteously and used offensive language. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, Police Officer Aliaj will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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April 4, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Ermir Aliaj (Tax Reg #959452, DADS #2023-29530)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with a penalty of Training was agreed upon and signed by all parties on February 25, 2025. Assistant Deputy Commissioner Vanessa Facio-Lince endorsed the negotiated settlement on March 25, 2025.

On July 10, 2022, at 2405 1st Avenue in Manhattan, PO Aliaj and a number of other officers responded to a 911 call. A complainant at the scene stated that another individual had assaulted her and was also in possession of a gun. The complainant pointed the individual out to the officers. The individual ran and was chased by officers. The individual ran into an apartment at the location, where he was apprehended by officers.

While officers are in the lobby of the building investigating, a civilian named Kyela Arroyo tries to enter the building. Ms. Arroyo tells the officers that she lives there. She is told by the officers that she cannot come in right now. She is caught on body-worn camera stating to the officers, "Do you want to see my ID, stupid?", PO Aliaj replies to her, "We don't need your ID, yeah call yourself stupid." PO Aliaj's response to Ms. Arroyo was discourteous and offensive and served no legitimate police function.

For the charge of a discourtesy, the disciplinary matrix lists a mitigated penalty of training, a presumptive penalty of the forfeiture of five (5) vacation days, and an aggravated penalty of forfeiture of ten (10) vacation days. For the charge of offensive language, the disciplinary matrix lists a mitigated penalty of the forfeiture of one (1) penalty day, a presumptive penalty of the forfeiture of twenty (20) vacation days, and an aggravated penalty of Termination.

The negotiated settlement deviates from NYPD disciplinary guidelines as to the charge of offensive language for the following reasons:

Officer Aliaj's nine years of service, as well as his lack of any prior disciplinary history.

Brian Arthur

Brian Arthur. Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board